

File No.: EXP202206825

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 13/06/2022, a written submission was received by this Agency from A.A.A. (hereinafter, the complainant), through which a complaint is made against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***DIRECCION.1, with indications of a possible breach of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

“A camera has been placed on the interior facade of the residence located at ***DIRECCION.1. This residence is a single-family house in which we, three tenants, live, rented from Mr. B.B.B. This house has a terrace and a shared pool.

The aforementioned B.B.B., in collaboration with C.C.C., has installed a camera on the facade of the mentioned C.C.C.

The camera is focused on the terrace and shared pool. These spaces are available to the tenants of the house in which we live. This house consists of 3 separate rooms or “houses.” In one we live, in another C.C.C. and D.D.D., and in the last one E.E.E. B.B.B. is the owner of the entire house.

The installation of the camera has not been notified, nor have they requested consent to record us. In our home live my wife, my daughter under 8 years old, and I. (...)”

Attached is a photographic report of the location of the video surveillance camera and the affected areas.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 16/06/2022, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 27/06/2022 as recorded in the acknowledgment of receipt in the file, without any response being received by the Agency.

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THIRD: On 19/08/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 14/11/2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation), classified under Article 83.5.a) of the GDPR. An initial assessment of an administrative fine of €300 was set, and as a possible measure, the removal of the device from its current location or regularization in accordance with current regulations.

FIFTH: The notification of the agreement to initiate the present sanctioning procedure was delivered on 15/11/2022, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

SIXTH: On 27/04/2023, a proposal for resolution was made in which, as a consequence of the instruction, it was considered that the legal qualification of the known facts should be different. Thus, it was proposed to sanction the respondent with a fine of €5,000 for the infringement of Article 6.1 of the GDPR due to the lack of a legal basis legitimizing the processing of personal data of the complainant

(their image).

Furthermore, it was ordered that, within ten working days from the date on which the resolution agreeing to this is notified, the respondent must prove that they have proceeded to remove the camera from its current location.

SEVENTH: On 17/05/2023, the proposal for resolution was notified to the respondent, without any response being received by this Agency.

PROVEN FACTS

FIRST: Installation of a white video surveillance camera at the top of the facade of the chalet owned by the respondent, located at ***DIRECCION.1, oriented towards the exterior areas of the plot.

SECOND: In the photograph taken by the complainant from the position of the camera, it is proven that the device in question is focused on the area of the pool and the terrace.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Agency is competent to initiate and resolve this procedure.

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Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

In this case, according to Article 4.1 of the GDPR, the physical image of a person is personal data.

Thus, images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

III

Lawfulness of the Processing of Personal Data

Article 18, paragraph 4 of the Spanish Constitution states: "The law shall limit the use of information technology to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights."

Recital 40 of the GDPR indicates that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or under the law of the Union or of the Member States to which this Regulation relates,

including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

On its part, the principles that must govern the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: “Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);
(...)”

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow the processing of personal data to be considered lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Therefore, the “data processing” carried out with the surveillance camera in question must be justified under the so-called legitimizing bases, that is, it must be possible to demonstrate the lawfulness of the processing in the list of situations or specific cases in which it is possible to process personal data.

In this case, a surveillance camera has been installed at the top of the façade of the chalet owned by the party being complained against, having been rented by the complainant.

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part of the property (the contract has not been provided in the claim), with the right to use common areas (terrace and pool) towards which the device is oriented.

As proof of these statements, the claiming party submitted photographic evidence showing the presence of a white surveillance camera at the upper part of the facade of the mentioned property, which, due to its height and position, is focused on the aforementioned areas. Thus, the presence of the camera in question implies an impact on spaces that cease to be “private” for the owner, becoming subject to enjoyment by a third party whose rights must be respected, including the right to privacy and the right to “personal data protection.”

Therefore, the “personal and domestic” scope in the capture of images of the common areas (Article 22.5 LOPDGDD) disappears when the use and enjoyment of the private dwelling is temporarily ceded to a third party, transforming it into an area reserved for their strictest personal and family privacy, also protected by data protection regulations, which generally do not allow the capture and processing of such data.

The right to privacy, let us remember, consists of guaranteeing the free development of each individual's private life, without “interference from third parties.” The presence of cameras focusing on

shared use areas not only implies excessive control over the entries/exits of the resident and/or companions but also constitutes a "data processing" that is not justified in the present file.

In this regard, the Constitutional Court states in STC 22/1984 that the right to the inviolability of the home constitutes a true fundamental right of the person, established, as we have said, to guarantee the privacy sphere of the individual within the space that the person chooses and which must be characterized precisely by being exempt or immune to external invasions or aggressions from other individuals or public authority.

In this sense—Contentious-Administrative Judgment No. 2923/2020, Superior Court of Justice of Catalonia, Contentious Chamber, Section 3, Rec 237/2019 of July 2, 2020—.

"As stated in STC 10/2002, of January 17 (FFJJ 5 and 6), cited by the Prosecutor and by the appellant in protection, and recalled later in STC 22/2003, of February 10, the constitutional norm that proclaims the inviolability of the home and the prohibition of home entry and searches (art. 18.2 CE), despite the autonomy that the Spanish Constitution recognizes to both rights, constitutes a manifestation of the preceding norm (art. 18.1 CE) that guarantees the fundamental right to personal and family privacy. Thus, if the right proclaimed in art. 18.1 CE aims to protect a reserved sphere of individuals' lives excluded from the knowledge of third parties, whether they are public authorities or private individuals, against their will, the right to home inviolability protects "a specific spatial area" since therein individuals exercise their most intimate freedom, free from all subjection to social uses and conventions, with both the physical space itself and what emanates from the person and their private sphere being the object of protection of this right. Therefore, we have stated that

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The constitutional protection of the home is an instrumental protection that defends the areas in which a person's private life develops. Among other consequences, this instrumental character determines that the constitutional concept of home is broader than the private legal or administrative legal concept of home and does not admit "reductionist conceptions" (see, among others, Constitutional Court Judgments 94/1999, of May 31, FJ 5, and 10/2002, of January 17, FJ 6 in fine). Therefore, we have affirmed in the legal foundation 8 of the aforementioned Constitutional Court Judgment 10/2002 that "the essential feature that defines the home for the purposes of the protection granted by art. 18.2 CE lies in its suitability for developing private life within it and in its specific destination for such development, even if it is eventual. This means, firstly, that its destination or use constitutes the essential element for the delimitation of constitutionally protected spaces, so that, in principle, their location, physical configuration, whether movable or immovable, the existence or type of legal title that enables its use, or finally, the intensity and periodicity with which private life is developed therein, are irrelevant. Secondly, although the effective development of private life is the determining factor for the specific suitability for the space in which it is developed to be considered a home, it does not necessarily follow that such suitability cannot be inferred from some of these characteristics, or others, insofar as they represent objective characteristics according to which it is possible to delimit the spaces that, in general, can and usually are used to develop private life." As well as that "the very instrumental character of the constitutional protection of the home concerning the protection of personal and family intimacy requires that, regardless of the physical configuration of the space, its external signs reveal the clear intention of its owner to exclude that space and the activities developed therein from the knowledge and intrusions of third parties." From this, we drew the conclusion, when declaring the unconstitutionality of the provisions of art. 557 of the Criminal Procedure Act, that "hotel rooms can constitute the home of their guests, since, in principle, they are suitable places, due to their own characteristics, for private life to be developed therein, given that the usual destination of hotel rooms is to carry out activities that can be generically framed within private life."

(*the bold and underlined text belongs to this body).

In the initiation agreement of the present sanctioning procedure, the accused party was charged with an infringement of article 5.1.c) of the GDPR, classified under article 83.5.a) of the GDPR; considering

that the capture of images of shared areas (terrace and pool) resulted in excessive and disproportionate processing. Thus, an initial assessment of an administrative fine of €300 (three hundred euros) was set, and as a possible measure, the removal of the device from the current location or regularization in accordance with current regulations.

However, taking into account the aforementioned and as a consequence of the instruction, it was considered that the legal qualification of the known facts should be different. The lack of legal basis that legitimizes the processing of personal data of the complaining party (image) violates what is established in article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of article 6.1 of the GDPR

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In accordance with the evidence available in this sanctioning procedure, it is considered that the facts presented violate the provisions established in Article 6.1 of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR that, under the heading "General conditions for the imposition of administrative fines," states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that: "Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, and in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679; (...)"

V

Sanction for the infringement of Article 6.1 of the GDPR

The corrective powers of the Spanish Agency for Data Protection, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In this case, considering the facts, it is deemed that the sanction to be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraphs 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;

- b) the intentionality or negligence in the infringement;
 - c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
 - d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
 - e) any previous infringement committed by the data controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor concerning the same matter, compliance with those measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- Furthermore, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” states:
- “1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.
2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:
- a) The continued nature of the infringement.

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- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

The aggravating circumstances are:

- The nature, severity, and duration of the infringement (art. 83.2.a GDPR), considering that, as previously noted, the home is inviolable, and the installation of video cameras represents a significant violation of the privacy of the individuals living there.

The balance of the circumstances listed above allows for the imposition of a fine of €5,000 (five thousand euros) for the commission of the infringement of Article 6.1 of the GDPR.

VI

Adoption of measures

Under the provisions of Article 58.2 d) of the GDPR, the respondent is ordered to demonstrate, within ten working days from the date this resolution is notified to them, that they have proceeded to remove the camera from its current location.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €5,000 (five thousand euros).

SECOND: TO NOTIFY this resolution to B.B.B.

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THIRD: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution is notified to them, they must demonstrate that they have proceeded to remove the camera from its current location.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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